# UNIHUB KENYA

## Data Collection Consent Forms

Verified Student Housing Platform

Prepared in accordance with the Data Protection Act, No. 24 of 2019 and the Data Protection (General) Regulations, 2021

| Document Control | Detail |
|---|---|
| Project | UniHub: Verified Student Housing Platform |
| Data Controller | UniHub Kenya, trading as UniHub |
| Contact | shadrack@unihub.ke |
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# 1. Introduction and Purpose

UniHub Kenya ("UniHub", "we", "us") operates a verified student housing discovery platform that helps university students in eight Kenyan campus towns find rental rooms and contact landlords and agents. The platform is a public web application accessible at unihub.ke (or the applicable domain).

This document sets out the consent forms used to obtain valid, informed, and freely given consent from data subjects for the processing of their personal data, as required by Section 30 of the Data Protection Act, No. 24 of 2019 ("the Act") and the Office of the Data Protection Commissioner Guidance Note on Data Protection Impact Assessment.

The consent forms correspond to the processing purposes identified in the UniHub Data Protection Impact Assessment (DPIA):

- P3 - Let a student contact a landlord by WhatsApp or email (Student consent)
- P5 - Publish landlord and agent listing details (Landlord/agent written consent)
- P4 - Receive and handle landlord enquiries sent by WhatsApp (Legitimate interests; consent for contact method)

No consent is required for purposes P1 (serve discovery pages), P2 (render campus map), or P6 (site security), which rely on legitimate interests under Section 30(1)(b) of the Act. Visitor technical data (IP address, user agent) is processed transiently by hosting providers and third-party hosts (map tiles, fonts) and is not retained by UniHub.

# 2. Parties and Data Subjects

| Party | Role | Personal Data Processed | Lawful Basis |
|---|---|---|---|
| Student visitors (prospective tenants) | Data subject | Transient IP address, user agent (hosting providers only); phone number & message content when clicking WhatsApp/email link (received by landlord & Meta, not UniHub) | P1, P2, P6: Legitimate interests; P3: Consent |
| Landlords & agents (listing owners) | Data subject & independent controller | Name/business name, telephone & WhatsApp number, email address, property location & description, rent, photographs/video of premises | P4: Legitimate interests; P5: Written consent |
| Landlords enquiring via WhatsApp | Data subject & independent controller | Sender's phone number, content of WhatsApp conversation with UniHub | P4: Legitimate interests |
| Vercel (hosting) | Data processor | Access logs (IP, headers, request path); 30-day default retention | Processing agreement (Action A1) |
| GitHub & Lovable (code & data) | Data processors | Code repository, listing data file | Processing terms (Action A1) |
| OpenFreeMap, Esri, font/script hosts | Independent third parties | Visitor IP address when tiles/fonts load | N/A (independent controllers) |

| | | | |
|---|---|---|---|
| Meta (WhatsApp) & email providers | Independent controllers | Message content, sender/recipient identifiers after hand-off | N/A (independent controllers) |
| Data Protection Officer | Advisor/oversight | Access to assessment, records, breach notifications | Statutory role |

# 3. Consent Form A - Student Visitor Consent

## Purpose P3: Contact a Landlord by WhatsApp or Email

When you click a "Contact via WhatsApp" or "Contact via Email" button on a listing page, you are giving your explicit consent for the following:

1. Your phone number (for WhatsApp) or email address (for email) and any message you choose to send will be transmitted directly to the landlord/agent and to the messaging provider (Meta Platforms Ireland Ltd. for WhatsApp; your email provider for email).
2. UniHub does not receive, store, or have access to the content of your message or your contact details at any point.
3. The button clearly names its destination (e.g., "Open in WhatsApp" or "Send Email") so you know where your data is going before you click.
4. An email alternative is always offered beside the WhatsApp button, so you can choose the channel you prefer.
5. No form on the UniHub site collects your contact details. The hand-off is a direct link that opens your WhatsApp or email application.
6. You may choose not to click the button. Browsing listings, filtering, and viewing the map work fully without contacting any landlord.

## CONSENT DECLARATION - STUDENT

By clicking the "Contact via WhatsApp" or "Contact via Email" button on a UniHub listing page, I confirm that:

- I have read and understood this consent information.
- I understand that my phone number/email and message will go to the landlord/agent and to WhatsApp/email provider, not to UniHub.
- I understand that I can use the email alternative if I prefer not to use WhatsApp.
- I understand that I am not required to contact any landlord to use the discovery features of the site.
- I freely give this consent by the clear affirmative act of clicking the button.

Implementation Note: Consent is obtained through the user interface at the point of action (button click). No separate checkbox or form is presented, as the button itself constitutes the "clear affirmative act" described in the Act and Guidance Note. The button text names the destination and purpose (e.g., "Contact Landlord via WhatsApp - Opens WhatsApp with pre-filled message").

# 4. Consent Form B - Landlord/Agent Listing Authorisation

## Purpose P5: Publish Landlord and Agent Listing Details

Before any listing goes live on the UniHub platform, the landlord or agent must provide written authorisation for the publication of their details. This consent is obtained via WhatsApp against the exact text to be published.

## DATA TO BE PUBLISHED (Fixed Field Inventory - Part 1, Item 3(a))

- Landlord/agent name or business name
- Telephone number and WhatsApp number
- Email address
- Property location (neighbourhood or building level - not exact doorway coordinate)
- Property description (room type, amenities, furnishings)
- Monthly rent amount
- Photographs and/or video clips of the premises (reviewed before publication; no identifiable people, number plates, or neighbouring premises)

The following are NEVER published:

- National ID number, passport number, or any identity-document number
- Payment data, bank account details, or financial information
- Biometric data
- Student location data or personal details

## CONSENT DECLARATION - LANDLORD/AGENT

By signing/confirming below (via WhatsApp message or signed document), I/we confirm that:

1. I am the property owner or an authorised agent with written authority from the owner.
2. I have reviewed the exact listing text, fields, and media to be published and confirm they are accurate.
3. I understand that the listing will be published on a public website accessible to any visitor and may be indexed by search engines.
4. I understand that hosting is provided by Vercel (United States) and code/data are held by GitHub and Lovable (outside Kenya), and I consent to this international transfer.
5. I understand the proposed retention period: until I withdraw the listing, the property is let, or 12 months after publication, whichever is first.
6. I understand that I may withdraw this consent at any time, without giving a reason, by contacting UniHub at shadrack@unihub.ke or via WhatsApp. The listing will be removed within 48 hours of withdrawal.
7. If I am an agent listing on behalf of an owner, I confirm that the owner has given their own separate consent for their name to be published (Action A6).
8. I freely give this written consent for the publication of the listing details as described above.

_____ _____

Landlord/Agent Name (Print) Date

_____ _____

Signature / WhatsApp Confirmation Contact Number

_____

Property Address / Reference

# 5. Consent Form C - Landlord Enquiry Handling

## Purpose P4: Receive and Handle Landlord Enquiries via WhatsApp

Landlords and agents may initiate contact with UniHub by sending a WhatsApp message to the UniHub number (displayed on the site and in communications). This processing relies on legitimate interests (Section 30(1)(b) of the Act) as the landlord has initiated contact. However, the following information is provided for transparency:

- Data collected: Your WhatsApp sender number and the content of your conversation with UniHub.
- Purpose: To evaluate your interest in listing a property, discuss listing details, and proceed to the formal authorisation (Consent Form B) if you wish to publish.
- Storage: Conversations are held in UniHub's WhatsApp account and on the founder's device. Proposed retention: deleted 6 months after the listing decision.
- No automated decision-making: The decision to publish or decline a listing is made by a person after review, not automatically. Reasons are given on request.
- International transfer: WhatsApp is operated by Meta Platforms Ireland Ltd. Messages are processed under Meta's terms and privacy policy.
- You may stop messaging at any time. To request deletion of your conversation data, contact shadrack@unihub.ke.

## ACKNOWLEDGEMENT - LANDLORD ENQUIRY

By messaging UniHub on WhatsApp to enquire about listing a property, I acknowledge that:

- I have initiated this contact voluntarily.
- My WhatsApp number and message content will be processed by UniHub for the purpose of evaluating a potential listing.
- I have been informed of the retention period (6 months after listing decision) and my right to request deletion.
- I understand that if I proceed to publish a listing, a separate written authorisation (Consent Form B) will be required.

# 6. Privacy Notice Summary (All Purposes P1-P6)

| Purpose | Description | Lawful Basis (Section 30) | Data Categories | Recipients/Transfers |
|---|---|---|---|---|
| P1 | Serve discovery pages & listings | Legitimate interests (controller) | Visitor IP, user agent, requested URL (transient) | Vercel (hosting, logs - US); third-party tile/font hosts |
| P2 | Render interactive campus map | Legitimate interests (essential to discovery) | Visitor IP (to tile providers) | OpenFreeMap, Esri (map tiles - outside Kenya) |
| P3 | Student contacts landlord via WhatsApp/email | Student consent (clear affirmative act) | Student phone/email & message (hand-off only) | Landlord/agent; Meta (WhatsApp); email provider |
| P4 | Receive landlord enquiries via WhatsApp | Legitimate interests (landlord initiated) | Landlord WhatsApp number, conversation content | UniHub WhatsApp account; Meta (WhatsApp) |
| P5 | Publish landlord/agent listing details | Landlord/agent written consent (withdrawable) | Name, phone, WhatsApp, email, property location/description, rent, photos/video | Public website visitors; Vercel (US); GitHub/Lovable (outside Kenya) |
| P6 | Keep site secure (HTTPS, headers, CSP) | Legitimate interests & statutory duty (Act) | Technical logs only (no personal data) | Vercel (security headers, access logs) |

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### International Transfers

Personal data is transferred outside Kenya to: Vercel (hosting & logs, United States), GitHub & Lovable (code & listing data, outside Kenya), OpenFreeMap & Esri (map tiles), and Meta (WhatsApp). The safeguards are: (a) minimal dataset; (b) listing data published in any case; (c) written consent stating hosting outside Kenya; (d) review and filing of provider data processing terms (Action A1); (e) short retention periods. The Data Protection Officer's written direction on transfer sufficiency under Part VI of the Act is expressly sought (Action A2). No real landlord data is committed to the repository or loaded onto any platform until this direction is given (Risk R3).

# 7. Rights of Data Subjects

Under the Data Protection Act, No. 24 of 2019 and the Data Protection (General) Regulations, 2021, data subjects have the following rights:

1. Right to be informed - to receive clear information about what data is processed, by whom, on what basis, where it is hosted, how long it is kept, and how to complain (Action A4: privacy notice published before launch).
2. Right of access - to request a copy of personal data held. A student who asks what UniHub holds is told that nothing is held. A landlord's listing data is provided on request.
3. Right to rectification - to have inaccurate data corrected. A landlord's listing is corrected on request (Action A7).
4. Right to erasure / withdrawal - to have data deleted or consent withdrawn. A landlord may withdraw listing consent at any time; the listing is removed within 48 hours (Action A7). A student's contact hand-off is a one-time act; no data is retained by UniHub to erase.
5. Right to object - to object to processing based on legitimate interests (P1, P2, P4, P6). Objections are assessed and acted upon within the time limits set by the Act and Regulations.
6. Right to data portability - to receive data in a structured, commonly used format. Applicable to landlord listing data and conversation records.
7. Right not to be subject to automated decision-making - UniHub makes no automated decisions about any student or landlord (P1-P6).
8. Right to complain - to the Office of the Data Protection Commissioner (ODPC), Kenya.

## How to Exercise Rights

A single named contact point is published on the site and in all communications:

- Email: shadrack@unihub.ke
- WhatsApp: [UniHub WhatsApp number - displayed on site]
- Requests are logged on receipt and actioned within the time limits set by the Act and the Data Protection (General) Regulations, 2021 (to be confirmed by the Data Protection Officer).

# 8. Withdrawal of Consent

## Student Consent (P3)

Student consent for the WhatsApp/email hand-off is a one-time act at the moment of clicking the button. No ongoing consent is stored by UniHub. The student may simply choose not to click the button in future. Since UniHub does not receive or store the student's contact details or message content, there is no data held by UniHub to withdraw.

## Landlord/Agent Consent (P5)

The landlord or agent may withdraw their written consent for publication at any time, without giving a reason, by:

- Emailing shadrack@unihub.ke with the listing reference and a statement of withdrawal.
- Messaging the UniHub WhatsApp number with the listing reference and a statement of withdrawal.

Upon receipt of a withdrawal request, UniHub will:

1. Log the request, date, and action taken (Action A7).
2. Remove the listing from the live site within 48 hours.
3. Confirm removal to the landlord/agent.
4. The listing data in the code repository will be removed in the next deployment cycle.

## Landlord Enquiry Data (P4)

A landlord who has messaged UniHub on WhatsApp may request deletion of their conversation data at any time by contacting shadrack@unihub.ke. The data will be deleted from UniHub's WhatsApp account and the founder's device within the statutory time limits.

## 9. Contact Information

| Role | Contact | Details |
|---|---|---|
| Data Controller | UniHub Kenya | trading as UniHub |
| Founder & Developer | Shadrack Baraka Mwahanga | shadrack@unihub.ke |
| Data Protection Officer | [To be appointed - Action A11] | External officer to be engaged before launch |
| Office of the Data Protection Commissioner | ODPC Kenya | Complaints: www.odpc.go.ke |
| Hosting Provider | Vercel | Data processing addendum to be executed (Action A1) |
| Code Repository | GitHub & Lovable | Terms to be reviewed and filed (Action A1) |
| Messaging | Meta Platforms Ireland Ltd. (WhatsApp) | Independent controller after hand-off |

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## Annex: Listing Field Inventory (Part 1, Item 3(a))

The following fields are fixed and are the only data published per listing. No additional fields may be added without updating this inventory, the DPIA, and obtaining fresh consent from affected landlords/agents.

| # | Field | Data Type | Sensitivity | Published | Consent |
|---|---|---|---|---|---|
| 1 | Landlord/Agent Name or Business Name | Text | Personal data | Yes | Written (Form B) |
| 2 | Telephone Number | Phone | Personal data | Yes (via contact button) | Written (Form B) |
| 3 | WhatsApp Number | Phone | Personal data | Yes (via contact button) | Written (Form B) |
| 4 | Email Address | Email | Personal data | Yes (via contact button) | Written (Form B) |
| 5 | Property Location (Neighbourhood/Building) | Text | Sensitive (property details - Section 2) | Yes | Written (Form B) |
| 6 | Property Description (Room Type, Amenities) | Text | Personal data | Yes | Written (Form B) |
| 7 | Monthly Rent Amount | Currency | Personal data | Yes | Written (Form B) |
| 8 | Photographs of Premises | Image | Sensitive (property details) | Yes (reviewed) | Written (Form B) |
| 9 | Video Clips of Premises | Video | Sensitive (property details) | Yes (reviewed) | Written (Form B) |
| 10 | Date Last Confirmed | Date | Administrative | Yes | Auto-generated |

| | | | | | |
|---|---|---|---|---|---|
| - | National ID / Passport Number | ID Number | Special category | NEVER | N/A |
| - | Payment / Bank Details | Financial | Special category | NEVER | N/A |
| - | Biometric Data | Biometric | Special category | NEVER | N/A |
| - | Student Personal Data | Various | Personal data | NEVER | N/A |

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